

STATE OF NEW YORK

5856--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. DURSO, ANGELINO, McDONOUGH, JENSEN, DeSTEFANO, SIMPSON, PIROZZOLO, SLATER, PALMESANO, MAHER, SEMPOLINSKI, SMULLEN, GIGLIO, BRABENEC, K. BROWN, TANNOUSIS, CHLUDZINSKI, GANDOLFO, WALSH -- read once and referred to the Committee on Ways and Means -- recommit-
ted to the Committee on Ways and Means in accordance with Assembly
Rule 3, sec. 2 -- committee discharged, bill amended, ordered
reprinted as amended and recommitted to said committee

AN ACT to amend the tax law, in relation to establishing a tax deduction
for cash and credit card tips received

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

- 1 Section 1. Subsection (c) of section 612 of the tax law is amended by
2 adding a new paragraph 48 to read as follows:
3 (48) The amount of cash and credit card tips received during the taxa-
4 ble year which are considered wages or compensation, as such terms are
5 defined in section six thousand fifty-three of the internal revenue
6 code.
7 § 2. This act shall take effect immediately and shall apply to all
8 taxable years beginning on or after January 1, 2026.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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